

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1099
(Reference to printed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Title 12, chapter 6, article 6, Arizona Revised
3 Statutes, is amended by adding section 12-651.01, to read:

4 12-651.01. Defamation

5 A. A PERSON COMMITS DEFAMATION IF THE PLAINTIFF IS A PRIVATE FIGURE
6 AND THE MATTER IS OF PRIVATE CONCERN AND THE PLAINTIFF SHOWS ALL OF THE
7 FOLLOWING EXIST:

8 1. THE PERSON PUBLISHES A STATEMENT THAT IS:

9 (a) PROVABLE AS FALSE.

10 (b) REASONABLY PERCEIVED AS STATING ACTUAL FACTS ABOUT THE
11 PLAINTIFF RATHER THAN IMAGINATIVE EXPRESSION OR RHETORICAL HYPERBOLE.

12 (c) THE PERSON MAKES THE STATEMENT WITH KNOWLEDGE OF ITS FALSITY,
13 ACTS WITH RECKLESS DISREGARD OF THE STATEMENT'S FALSITY OR NEGLIGENTLY
14 FAILS TO ASCERTAIN THE STATEMENT'S FALSITY.

15 2. THE STATEMENT, WHEN EXAMINED WITHIN THE FULL CONTEXT IN WHICH IT
16 WAS MADE, INJURES THE PLAINTIFF'S REPUTATION BY DOING ANY OF THE
17 FOLLOWING:

18 (a) IDENTIFYING THE PLAINTIFF BY NAME.

19 (b) INCLUDING A DESCRIPTION OF OR REFERENCE TO THE PLAINTIFF SO
20 THAT THOSE WHO HEAR OR READ THE STATEMENT REASONABLY UNDERSTAND THE
21 PLAINTIFF TO BE THE SUBJECT OF THE STATEMENT.

22 (c) IMPLYING A CLEARLY DEFAMATORY MEANING THAT, WHEN EXAMINED
23 WITHIN ITS CONTEXT, CAUSES THE AVERAGE PERSON TO PERCEIVE A DEFAMATORY
24 MESSAGE.

25 B. A PERSON COMMITS DEFAMATION IF THE PLAINTIFF IS A PRIVATE FIGURE
26 AND THE MATTER IS OF PUBLIC CONCERN AND THE PLAINTIFF SHOWS ALL OF THE
27 FOLLOWING EXIST:

28 1. THE PERSON PUBLISHES A STATEMENT THE PERSON KNOWS TO BE FALSE,
29 ACTS WITH RECKLESS DISREGARD OF THE STATEMENT'S FALSITY OR NEGLIGENTLY
30 FAILS TO ASCERTAIN THE STATEMENT'S FALSITY.

31 2. THE PERSON PUBLISHES A STATEMENT THAT, WHEN EXAMINED WITHIN THE
32 FULL CONTEXT IN WHICH IT WAS MADE, INJURES THE PLAINTIFF'S REPUTATION BY
33 DOING ANY OF THE FOLLOWING:

34 (a) IDENTIFYING THE PLAINTIFF BY NAME.

35 (b) INCLUDING A DESCRIPTION OF OR REFERENCE TO THE PLAINTIFF SO
36 THAT THOSE WHO HEAR OR READ THE STATEMENT REASONABLY UNDERSTAND THE
37 PLAINTIFF TO BE THE SUBJECT OF THE STATEMENT.

38 (c) IMPLYING A CLEARLY DEFAMATORY MEANING THAT, WHEN EXAMINED
39 WITHIN ITS CONTEXT, CAUSES THE AVERAGE PERSON TO PERCEIVE A DEFAMATORY
40 MESSAGE.

1 3. THE PUBLISHED STATEMENT IS BOTH:
2 (a) PROVABLE AS FALSE.
3 (b) REASONABLY PERCEIVED AS STATING ACTUAL FACTS ABOUT THE
4 PLAINTIFF RATHER THAN IMAGINATIVE EXPRESSION OR RHETORICAL HYPERBOLE.
5 C. A PERSON COMMITS DEFAMATION IF THE PLAINTIFF IS A PUBLIC FIGURE
6 AND THE MATTER IS OF PUBLIC CONCERN AND THE PLAINTIFF SHOWS ALL OF THE
7 FOLLOWING EXIST:
8 1. THE PERSON PUBLISHES A STATEMENT THE PERSON KNOWS TO BE FALSE OR
9 ACTS WITH RECKLESS DISREGARD OF THE STATEMENT'S TRUTH.
10 2. THE PERSON PUBLISHES A STATEMENT THAT, WHEN EXAMINED WITHIN THE
11 FULL CONTEXT IN WHICH IT WAS MADE, INJURES THE PLAINTIFF'S REPUTATION BY:
12 (a) IDENTIFYING THE PLAINTIFF BY NAME.
13 (b) INCLUDING A DESCRIPTION OF OR REFERENCE TO THE PLAINTIFF SO
14 THAT THOSE WHO HEAR OR READ THE STATEMENT REASONABLY UNDERSTAND THE
15 PLAINTIFF TO BE THE SUBJECT OF THE STATEMENT.
16 (c) IMPLYING A CLEARLY DEFAMATORY MEANING THAT, WHEN EXAMINED
17 WITHIN ITS CONTEXT, CAUSES THE AVERAGE PERSON TO PERCEIVE A DEFAMATORY
18 MESSAGE.
19 3. THE STATEMENT IS BOTH:
20 (a) PROVABLE AS FALSE.
21 (b) REASONABLY PERCEIVED AS STATING ACTUAL FACTS ABOUT THE
22 PLAINTIFF RATHER THAN IMAGINATIVE EXPRESSION OR RHETORICAL HYPERBOLE.
23 D. THE PLAINTIFF'S SHOWING PURSUANT TO SUBSECTIONS B AND C OF THIS
24 SECTION IS SUBJECT TO APPELLATE REVIEW."
25 Amend title to conform

1099JUDE.docx
02/16/2026
1:12 PM
C: JV
1300SYNPZ